

TENTATIVE RULINGS FOR DEPT. S36
BEFORE THE HONORABLE JOSEPH WIDMAN

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ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

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This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

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You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DEWRAISE CORPREW,

Plaintiff,

v.

GARCIA AVILA, ET AL.,

Defendants.

Case No.: CIVSB2419102

**[TENTATIVE] ORDER DENYING
MOTION FOR SUMMARY
JUDGMENT OR ADJUDICATION
FILED BY DEFENDANTS**

I. INTRODUCTION

A. The Complaint and Allegations

This is a motor vehicle negligence action. On June 11, 2024, Plaintiff Dewraise Corprew filed a Complaint against Defendants Gustavo Garcia Avila (Avila) and Coronet Concrete Products, Inc. (Coronet) (collectively, Defendants) alleging two causes of action for motor vehicle negligence and negligence. Avila and Coronet answered.

Avila and Coronet were the owners, lessors, and entrustors of a 2013 Freightliner Tractor Truck and secondary trailer (Truck). The accident occurred on June 24, 2022, while Plaintiff was

driving a 2017 BMW X3 (BMW) on the I-10 freeway near the SR 210 interchange. Plaintiff alleges Defendants operated the Truck in excess of the speed limit, performed an unsafe and illegal lane change, lost control of the Truck, and collided with Plaintiff's BMW, causing injuries.

B. Pending Motion for Summary Judgment or Adjudication

Defendants Avila and Coronet move for summary judgment (MSJ) or adjudication (MSA) of Plaintiff's Complaint. Plaintiff opposes and Defendants reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. PRELIMINARY MATTERS

A. Request For Judicial Notice

Defendants ask the court to take judicial notice of Plaintiff's Complaint, and specifically certain allegations therein which they contend are construed properly as binding judicial admissions, relying on *Valerio v. Andrew Younquist Construction* (2002) 103 Cal.App.4th 1264, 1271 (*Valerio*) and *Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal.App.5th 181, 195. Per *Valerio*:

The admission of fact in a pleading is a "judicial admission." Witkin describes the effect of such an admission: "An admission in the pleadings is not treated procedurally as evidence; *i.e.*, the pleading need not (and should not) be offered in evidence, but may be commented on in argument and relied on as part of the case. And it is fundamentally different from evidence: It is a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues. Under the doctrine of 'conclusiveness of pleadings,' a pleader is bound by well pleaded material allegations or by failure to deny well pleaded material allegations. [Citations.]" (4 Witkin, Cal. Procedure (4th ed. 1997) Pleading, § 413, pp. 510-11.)"

(*Valerio, supra*, 103 Cal.App.4th at p. 1271.)

Although the Court cannot judicially notice the truth of the Complaint's contents, it takes judicial notice of the document's existence as a court record pursuant to Evidence Code section 452, subdivision (d). "[T]he truth of a document's contents will not be considered unless it is a

judgment, statement of decision, or order.” (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1103.)

To the extent that Defendants comment on allegations in the Complaint and rely on them under the conclusiveness of pleadings doctrine, Plaintiff is bound by any such well-pleaded material allegations.

The Court GRANTS Defendants’ request for judicial notice as to the existence only of Plaintiff’s Complaint.

B. Defendants’ Reply Declaration and Response to Plaintiff’s Separate Statement Opposition

With their reply papers, Defendants submitted a supplemental declaration of counsel Keough with an additional 176 pages of exhibits H through O (Keough Supp. Decl.) and a response to Plaintiff’s Statement of Additional Material Facts. Plaintiff’s objections to both have merit.

Reply separate statements are not authorized by statute or court rules. The summary judgment statute states that the reply shall not include any separate statement submitted with the reply and not presented in the moving papers or opposing papers. (Code Civ. Proc., § 437c, subd. (b)(4).) “There is no provision in the statute for this.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (referring to 297-page reply separate statement).)

Accordingly, the Court DISREGARDS reply separate statement as unauthorized by statute.

The supplemental Keough declaration admits that it was submitted “to introduce documentary evidence cited in the reply that was not attached to [Keough’s] original Declaration filed June 12, 2026.” (Keough Supp. Decl., ¶ 1.) The summary judgment statute prohibits any new evidentiary matter or additional material facts with the reply. (Code Civ. Proc., § 437c,

subd. (b)(4).) The general rule of motion practice is that new evidence is not permitted with reply papers based on the principle of unfairness to the opponent of not being able to address the new matter raised in a reply. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-28.)

This principle applies particularly where the circumstances giving rise to the new matter were known to attorneys when their initial motion was filed. (*Id.*, at pp. 227-28.) Keough's supplemental declaration describes a deposition taken on May 16, 2025, and discovery responses dated 4/8/26 and 4/15/26 (Exhibits M, N, O). (Keough Supp. Decl., ¶¶ 9-11, Exhs. M-O.) Such information was known to Defendants before they filed their motion on June 12, 2026. Regarding the post-filing depositions in Exhibits J through L, Defendants fail to explain why they did not postpone filing the motion until those depositions were completed.

The Court DISREGARDS the supplemental Keough declaration including Exhibits H-O in its entirety as unauthorized by statute and case law.

III. EVIDENTIARY OBJECTIONS

A. Plaintiff's Evidentiary Objections

Plaintiff raises 12 evidentiary objections to Defendants' evidence. The Court's rulings are as follows:

1. SUSTAINED: Objection 1 to Exhibit D, the CHP Traffic Crash Report (TCR), based on Vehicle Code section 20013 providing that accident reports shall not be used as evidence in any civil or criminal trial.

2. OVERRULED: Objections 2, 3 to Dallin deposition testimony because a trained and experienced police officer's opinion on the point of impact of a collision is properly admitted. (*Kastner v. Los Angeles Metropolitan Transit Authority* (1965) 63 Cal.2d 52, 56 (*Kastner*).) Dallin testified he underwent CHP training and passed exams to investigate traffic collisions, has 17 years of experience as a CHP officer, and investigated hundreds of accidents. (Dallin Depo., 11:2-16.)

3. OVERRULED: Objections 6, 7 to Dallin deposition because a traffic officer with years investigating accidents is an expert where he was required to render official reports as to the accident facts and his opinion of their causes including point of impact. (*Kastner, supra*, 63 Cal.2d at p. 57.)

4. OVERRULED: Objection 8 to Dallin deposition because party admission admissible under hearsay exception, Evidence Code section 1220.

5. The Court DECLINES TO RULE on Objections 4, 5, 9, 10, 11, 12 as immaterial to resolution of the motion.

B. Defendants' Evidentiary Objections

Defendants raise ten evidentiary objections to the Thompson declaration. Because the Court's analysis below does not rely on any facts from the Thompson declaration, the Court DECLINES TO RULE on Defendants' objections to the Thompson declaration as immaterial to resolution of the motion.

IV. WHY THE COURT IS DENYING SUMMARY ADJUDICATION

Rule 3.1350(b) states that if summary adjudication is sought, whether separately or as an alternative to summary judgment, the specific cause of action, defense, claim for damages, or issue of duty must be stated specifically in the notice and be repeated, verbatim, in the separate statement. (Cal. Rules of Court, rule 3.1350(b).) Here, Plaintiff specifically objects that Defendants' moving papers as to summary adjudication are procedurally defective because the notice does not specify the cause of action, defense, damages claim, or issue of duty for which adjudication is sought; likewise, the Defendants' separate statement does not so indicate either.

The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers." (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744 (*Schmidlin*).)

Plaintiff is correct. Defendants' notice and separate statement do not comply with these requirements. Where a party does not comply with this rule requirement, the court properly denies or rejects any attempt to seek summary adjudication: " 'If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion....' [Citation.] There is a sound reason for this rule: '... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.'" (*Schmidlin, supra*, 157 Cal.App.4th at p. 744, citing *Gonzales v. Super Ct.* (1987) 189 Cal.App.3d 1542, 1546.)

Accordingly, the Court DENIES Defendants' motion for summary adjudication because of their failure to comply with Rule 3.1350(b).

V. WHY THE COURT IS DENYING SUMMARY JUDGMENT

A. Defendants' Initial Burden

The elements for a negligence tort are: 1) a legal duty to use due care; 2) breach of legal duty; 3) proximate or legal cause; 4) resulting injury. (*Beacon Residential Comm. Assn. v. Skidmore, Owings & Merrill LLP* (2014) 59 Cal.4th 568, 573.) Defendants contend that Plaintiff cannot establish the breach or causation elements because no competent evidence shows Defendants did anything wrong.

Defendants' Truck was traveling in the number one lane ahead of Plaintiff's vehicle at a lawful speed. (Defendants' Undisputed Material Facts (UMF) 14 - Keough Decl., Exh. C, Vasquez Depo., 14:23-25, 15:11-13; UMF 31 – Keough Decl., Exh. B, Dallin Depo., 38:1-7.) Avila, driving the Truck, was not aware of Plaintiff's vehicle because it was positioned in a

closing lane to the right between the Truck's trailers. (UMF 16 – Keough Decl., Exh. C, Vasquez Depo., 40:21-23, 60:18-21; UMF 24 – Keough Decl., Exh. B, Dallin Depo., 18:1-9.)

Defendants contend that the undisputed evidence shows that Plaintiff was the sole cause of the accident based on several facts. First, Plaintiff attempted an unsafe passing maneuver on the right side of Defendants' Truck at approximately 50-plus miles per hour at a location where the lane was narrowing and merging. (UMF 13 – Keough Decl., Exh. A, Corprew Depo., 57:19-20; Exh. F, Form Rog. Resp. 20.8; UMF 18 – Keough Decl., Exh. C, Vasquez Depo., 21:15-19, 61:13-15; UMF 19 – Keough Decl., Exh. C, Vasquez Depo., 17:12-17, Exh. A, Corprew Depo., 62:7-9.)

Then, Plaintiff accelerated rapidly to overtake the Truck on the right in a narrowing lane bordered by concrete K-rail barriers. (UMF 18 – Keough Decl., Exh. C, Vasquez Depo., 21:15-19, 61:13-15.) Plaintiff failed to slow down or merge safely as required. (UMF 17 – Keough Decl., Exh. C, Vasquez Depo., 13:5-12 [testifying that Plaintiff's SUV "started to speed up to try to overtake the tractor"], 16:24-17:2.)

Plaintiff turned left to avoid striking the K-rail. (UMF 20 – Keough Decl., Exh. C, Vasquez Depo., 22:6-17.) In doing so, the left side of Plaintiff's BMW struck the right side of Defendants' tractor. (UMF 21 – Keough Decl., Exh. C, Vasquez Depo., 22:18-22, 68:14-20, Exh. B, Dallin Depo., 29:14-24, 30:17-19.) The impact caused Plaintiff's vehicle to flip over onto its roof. (UMF 23 – Keough Decl., Exh. C, Vasquez Depo., 23:9-13, Exh. A, Corprew Depo., 61:15-20, Exh. B, Dallin Depo., 14:18-20, 16:22-17:7.)

CHP Officer Dallin concluded that Plaintiff was the primary collision factor, determining that she made an unsafe turn in violation of Vehicle Code section 22107. (UMF 28 – Keough Decl., Exh. B, Dallin Depo., 22:6-23, 25:21-26:8.) Dallin testifies: "From my investigation, I

believe the cause of this was the driver, Ms. Corprew, driving her SUV attempted to pass the semi-truck on its right in an unsafe location. She turned her vehicle to avoid, you know, colliding with the wall or the truck causing it to crash and overturn onto its roof.” (Keough Decl., Exh. B, Dallin Depo., 26:3-8.)

Dallin further concluded that Plaintiff made an unsafe passing maneuver on the right in violation of Vehicle Code section 21755. (UMF 29 – Keough Decl., Exh. B, Dallin Depo., 40:2-41:10.) No citation was issued to Defendants’ driver for any traffic violation. (UMF 27 – Keough Decl., Exh. B, Dallin Depo., 39:16-17 [Dallin testifies he did not issue any citations in connection with the incident].)

Officer Dallin testified that there was nothing Defendants’ driver did that was wrong or contributed to the accident. (UMF 26 – Keough Decl., Exh. B, Dallin Depo., 51:14-23.)

Under California’s negligence *per se* doctrine, violation of a statute creates a presumption of negligence where the statute was designed to prevent the type of harm suffered and the plaintiff was in the class of persons the statute was intended to protect. (Evid. Code, § 669.) The failure of a person to exercise due care is presumed if four factors, as relevant here, are present: 1) the person violated a statute of a public entity; 2) the violation proximately caused injury to person or property; 3) the injury resulted from an occurrence the statute was designed to prevent; and 4) the person suffering personal or property injury was one of the class of persons for whose protection the statute was adopted. (Evid. Code, § 669, subd. (a)(1)-(4).) The presumption may be rebutted by proof that the person violating the statute did what might reasonably be expected of a person of ordinary prudence acting under similar circumstances who desired to comply with the law. (Evid. Code, § 669, subd. (b)(1).)

Defendants contend that Plaintiff's violation of Vehicle Code sections 21755 and 22107 establishes negligence *per se* as a proximate cause of the accident because both statutes were designed to prevent the type of collision that occurred here.

With the foregoing facts, evidence, and arguments, Defendants met their burden to show that the negligence claims lack merit because Plaintiff cannot establish that Defendants caused the accident. Therefore, the burden shifts to Plaintiff to raise a triable issue of fact as to breach or causation.

B. Plaintiff's Opposition

Plaintiff presents evidence that Defendants' driver Avila saw Plaintiff's vehicle in his right mirror four to five seconds before the impact, assumed Plaintiff would yield, stopped looking, never braked, never signaled, and had his foot on the accelerator at impact. (Garcia Decl., Exh. D, Avila Depo., 36:14-22, 38:13-17, 39:15-20, 40:2-13, 41:7-15, 44:3-19, 64:5-25, 65:3-5.)

Avila also testified that he never braked before the impact but stated he slowed down a little bit because he was entering the 10 and was looking toward his left. (Garcia Decl., Exh. D, Avila Depo., 64:15-22, 65:3-5.) Plaintiff testified that the Truck did not slow and was traveling at 60 miles per hour or more compared to her speed of about 50 mph. (Garcia Decl., Exh. A, Corprew Depo., 59:6-19, 60:3-21, 62:10-14.) This conflicting testimony creates a triable issue of material fact regarding vehicle speeds and causation: Avila claims he decelerated, whereas Plaintiff asserts he maintained a speed of at least 60 mph.

Plaintiff provided more testimony about the moments leading up to the collision: "I was driving in the right lane. I saw the truck. He was in his lane. We're driving. There was a white utility van in front of the truck. He got over, he or she. The van got over into my lane, and I'm just – I keep driving, and then I'm not seeing him slow down, so I keep driving. I'm like – I'm

assuming he sees me, though, because the van in front of him had gotten in front of me. He did not slow down, and at the bottom, it's like I can't – I have to get over. If he let the other van get over, I mean, I'm thinking he's going to slow down, and he did not.” (Garcia Decl., Exh. A, Corprew Depo., 59:6-16.)

C. Presence of Triable Issues of Material Fact

The foregoing deposition testimony from the drivers of each vehicle involved in the collision demonstrates their differing perspectives about the moments leading up to the accident and how the collision occurred. For example, Avila testified that he assumed Plaintiff would yield whereas Plaintiff assumed Avila would slow down for her like he did for the utility van. The conflicting testimony regarding right-of-way assumptions creates a triable issue of fact; in a narrowing merge lane, which driver had the duty or opportunity to yield directly bears on causation.

Accordingly, Plaintiff has raised triable issues of material fact regarding driver conduct, pre-collision speeds, and yielding obligations leading up to the impact. Because Plaintiff raised triable issues of fact, summary judgment is not appropriate. The jury must decide any disputed issues related to causation (and any other appropriate fact questions disclosed by the evidence presented at trial).

VI. CONCLUSION

A. Preliminary Matters

1. Defendants' reply separate statement is DISREGARDED as unauthorized by statute.
2. The supplemental Keough declaration including Exhibits H-O is DISREGARDED in its entirety as unauthorized by statute and case law.
3. Defendants' request for judicial notice as to the existence only of Plaintiff's Complaint is GRANTED.

4. Rulings on Plaintiff's Evidentiary Objections: See above Section III.A.
5. Defendants' objections to the Thompson declaration: Court DECLINES TO RULE because the objections are immaterial to resolution of the motion.

B. Ruling on Motions

6. Defendants' motion for summary adjudication is DENIED. Defendants failed to comply with Rule 3.1350(b).
7. Defendants' motion for summary judgment is DENIED.
 - a. DISPUTED FACTS: UMF 5.
 - b. EVIDENCE RELIED ON FROM DEFENDANTS: UMF 13, 14, 16, 17, 18, 19, 20, 21, 23, 24, 26, 27, 28, 29, 31, Keough Decl., Exh. A, Corprew Depo., Exh. B, Dallin Depo., Exh. C, Vasquez Depo., Exh. F, Form Rog. Resp. 20.8.
 - c. EVIDENCE RELIED ON FROM PLAINTIFF: Garcia Decl., Exh. A, Corprew Decl., Exh. D, Avila Decl.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court